

TENTATIVE RULING

Case: **Cazares v. County of Yolo**
 Case No. CV2024-2036

Hearing Date: **February 10, 2026** **Department Fourteen** **9:00 a.m.**

Defendant County of Yolo’s motion for monetary sanctions in the amount of \$4,324.00 for misuse of the discovery process, and evidentiary, issue, and/or terminating sanctions for violation of court order is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030.) First, as to monetary sanctions, defendant’s notice of motion does not “identify every person, party, and attorney against whom the sanction is sought.” (Code Civ. Proc., § 2023.040.) While there are only two parties in this case, the notice of motion fails to state whether defendant seeks monetary sanctions against plaintiff Jennifer Cazares, her counsel, or both. (See Code Civ. Proc., § 2023.030, subd. (a).) Second, as to issue, evidentiary, and terminating sanctions, the Court declines to impose these sanctions because: (1) plaintiff provided a signed authorization; and (2) plaintiff has not violated previous court orders. (Code Civ. Proc., § 2023.030, subds. (b), (c), & (d); Reply, p. 2; see also *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 [“a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective” and noting that the discovery statutes take an incremental approach]; see generally Jaime decl.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2023.030, subd. (a).) Defendant acted with substantial justification in bringing this motion. (*Ibid.*; Jaime decl., ¶¶ 2-4, 9-12, & 17-21.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Dang v. California Department of Transportation**
 Case No. CV2022-1740

Hearing Date: **February 10, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Audrey Jade Dang's unopposed motion to specially set trial date is **GRANTED**. (Cal. Rules of Court, rule 3.1335; Code Civ. Proc., § 1048, subd. (b); Roussas decl., ¶¶ 2-7, Exhibit A.)

Parties are **DIRECTED TO APPEAR** to select dates for the trial (in March 2027) and the trial readiness conference.